

SENATE No. 1240

The Commonwealth of Massachusetts

PRESENTED BY:

Pavel M. Payano

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting fairness in youthful offender indictments.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Pavel M. Payano</i>	<i>First Essex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>

SENATE No. 1240

By Mr. Payano, a petition (accompanied by bill, Senate, No. 1240) of Pavel M. Payano for legislation to promote fairness in youthful offender indictments by raising the minimum age of a youthful offender from 14 to 16. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting fairness in youthful offender indictments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 52 of chapter 119 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 18, the word “fourteen” and inserting
3 in place thereof the following word:- sixteen.

4 SECTION 2. Said section 52 of said chapter 119, as so appearing, is hereby further
5 amended by striking out, in line 21, the words “(a) has previously been committed to the
6 department of youth services, or (b) has committed an offense which involves the infliction or
7 threat of serious bodily harm in violation of law, or (c)” and inserting in place thereof the
8 following words:- (a) has committed an offense which involves the infliction or threat of serious
9 bodily harm in violation of law, or (b).

10 SECTION 3. Said section 52 of said chapter 119, as so appearing, is hereby further
11 amended by striking out, in lines 25 - 28, the words “; provided that, nothing in this clause shall

12 allow for less than the imposition of the mandatory commitment periods provided in section
13 fifty-eight of chapter one hundred and nineteen”.

14 SECTION 4. Section 54 of said chapter 119, as so appearing, is hereby amended by
15 striking out, in line 21, the word “fourteen” and inserting in place thereof the following word:-
16 sixteen.

17 SECTION 5. Section 54 of said chapter 119, as so appearing, is hereby amended by
18 striking out, in line 23, the words “, and the person has previously been committed to the
19 department of youth services,”.

20 SECTION 6. Upon enactment, provisions of this bill shall apply to juvenile cases that
21 have not been adjudicated at the effective date of the law.